Essay

Who's Responsible for Building in the Floodplain?

Camp Mystic, Zoning Laws, and the Limits of Federal Power

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Camp Mystic, Zoning Laws, and the Limits of Federal Power

After 27 people died at Camp Mystic on July 4, a colleague told me something I haven't stopped thinking about:

"The federal government is ultimately to blame. They knew the risks. They should've stopped people from living or camping in the floodplain."

It's an emotionally compelling idea.

The government knew.

They mapped the flood zone.

They issued the warnings.

Camp Mystic still stood in harm's way.

But here's the hard truth:

The United States just doesn't work like that.

A Brief Aside, Continue Reading Below

This essay looks at **what the federal government can (and can't) do** to prevent tragedies like this one. We examine the **complicated system of shared responsibility** that governs how we live–and die–in dangerous places.

Disclaimer: The views expressed here are my own and do not represent the official policy or position of the U.S. Army Corps of Engineers, the Department of Defense, or the United States Government.

New here?

- 👉 Essay #1: What Happened at Camp Mystic?
- 👉 Essay #2: The Water's Rising
- 👉 Essay #3: Flash Flood Alley

Who Controls Where We Build?

The federal government doesn't control zoning and development law.

Source: CBS News

That power belongs to local governments counties, cities, and towns acting under authority granted by the states. It's been that way since a **1926 Supreme Court case** (*Village of Euclid v. Ambler Realty*) **upheld zoning as a legitimate local safety tool.**

That means cities and counties get to decide where the homes, summer camps, and trailer parks exist.

Texas follows this model.

In places like Kerr County, where Camp Mystic is located, zoning authority is relatively weak.

Kerr County does participate in FEMA's National Flood Insurance Program (NFIP), which requires it to regulate construction in flood zones.

The county designated the Guadalupe River as "extremely hazardous."

👉 Essay #3 includes a map showing Camp Mystic's cabins inside the floodway.

If that's true, then

why were cabins in the floodway?

Some were built decades ago and were likely grandfathered in.

Others were approved as part of more recent expansions.

Some were removed from FEMA's official flood maps through a technical appeals process.

The Federal Government's role is to effectively communicate flood risk

think FEMA flood maps and NWS alerts.

The federal government does not have the authority to restrict construction on private and state owned property.

There are numerous examples of obviously risky places where people choose to live:

1. Any barrier island along the intercoastal waterway (Hurricanes, Coastal Inundation)
2. The cliffs of California (fires, earthquakes)
3. Tornado Alley (you guessed it)

The feds CAN offer (or withhold) funding and support for key programs to influence localities.

Federal flood insurance is often mandated by lenders for properties located in high-risk flood zones (if the property is financed).

That being said,

Zoning law is determined by local governments, period.

Local governments approve building plans.
They sign off on emergency preparedness plans.
They inspect the buildings, they dot the i's,

and they cross the t's.

All FEMA can do is communicate the risk.

What does FEMA Actually Do?

FEMA doesn't tell people where to build.

Instead, **it sets the rules for federally backed flood insurance.**
If a community **adopts FEMA's minimum standards**,
then its residents become **eligible for coverage.**

If they don't, they're cut off.

That's the deal:

Subsidized flood insurance for minimum flood risk reduction measures.

Those minimum standards are often based on outdated assumptions
Like the idea of a "100-year flood," which assumes historical patterns will hold true.

Wait what's a "100-year flood"?

It doesn't mean a flood that happens once every 100 years.

It means **a flood that has a 1% chance of happening in any given year.**

These aren't expiration dates.

You could have two "100-year" floods back-to-back.

In fact, some Texas towns have.

The problem is that **these numbers rely on historical data**
assuming the past is a good guide to the future.

👉 In Essay #2, we explored how climate change has made those assumptions unreliable.

On the 4th of July, the water

rose well beyond the 100-year level.

> An engineer I work with said that it was closer to a 10,000 year flood.

Rain poured in from rivulets and tributaries.

The river swellled beyond its banks.

A wall of water.

Heartbreak.

> FEMA didn't prevent the tragedy.

> But it didn't approve the construction of the camp either.

FEMA provides information about risk and offers a risk informed framework for understanding it.

> ***Local officials and property owners use this information to make decisions about where to build homes, towns, and summer camps.***

> And the system as designed

> tolerates risk.

Warning vs. Action

During an Emergency

> The federal government doesn't control how local agencies warn their residents.

The National Weather Service issued its **first flash flood warning at 1:14 a.m.**

At 4:03 a.m., they upgraded it to a rare **Flash Flood Emergency.**

At 4:22 a.m., a local **firefighter requested that Kerr County send out a CodeRED** alert to residents in Hunt, TX.

> **No local emergency alerts were issued until much later.**

> 👉 Essay #1 lays out the full warning timeline.

> 👉 Essay #3 breaks down how those delays turned deadly.

By the time Camp Mystic **began evacuating around 4:45 a.m.**, it was **already too late** for many.

Here's how it is supposed to work:

1. The National Weather Service issues the alerts.
2. Local officials get the message to the people on the ground.
3. Individuals and organizations (like Camp Mystic) respond to the alerts.

Can the Federal Government Force People to Move?

> No.

The federal government ***can incentivize*** relocation by funding voluntary buyouts or limiting future disaster aid.

It ***can't force*** local governments to evacuate a town, shut down a summer camp, or relocate a community in advance of a storm.

> Why?

Under current law, **the feds don't have zoning authority.**

They **can't commandeer states to enforce land use policies** (New York v. United States, 1992).

> Even after Hurricane Katrina, the government relied on voluntary participation in relocation programs.

Eminent domain

where property is taken for public use

requires just compensation and is usually used for roads or dam construction,

> not immediate flood safety.

> 👉 In Essay #2, we showed how the risks of flooding are increasing even as those tools remain voluntary.

So Who Is Responsible?

The federal government?

1. Issued the warnings,
2. Mapped the floodplain,
3. Funded the insurance program,
4. Approved the flood zone removals.

The county?

1. Knew the area was hazardous,
2. Approved the site plan,
3. Had the power to require better planning or elevation,
4. Didn't send out an alert in time.

The camp?

1. Expanded into the floodplain,
2. Failed to train its staff on emergency procedures,
3. Had no one awake in the hours preceding 4:45 a.m.,
4. Lost power before getting everyone to safety.

The parents?

1. Entrusted their children to the camp,
2. Assumed it was safe,
3. May not have known it was in a designated floodway,
4. And may not have asked.

The truth is:

No one party is to blame.

> It's all just a part of the picture.

Parents don't approve site plans or read flood maps…

And **they are often told**

> *by brochures, word of mouth, or tradition*

> that places like Camp Mystic are *safe.*

So they sign the forms.

They send their kids.

They trust the system.

And this time,

> The system let them down.

> 👉 In Essay #1, we covered what happened that night.

> 👉 In Essay #2, we explained why storms like this are more common now.

> 👉 In Essay #3, we unpacked how the Hill Country's terrain turns storms into killers.

What Happens Now?

> FEMA is currently on the chopping block as an agency with public talks of complete restructuring or dissolution.

Texas is considering new rules for youth camps and floodplain occupancy.

Kerr County must upgrade its emergency communication protocols.

There is no national rule that says “you can’t put kids in a floodway.”

That is unlikely to change.

What do you think?

Is the federal government ultimately responsible for the Camp Mystic tragedy?

If so, what should the Feds have done differently?

Are the camp organizers to blame?

The local government?

The parents?

Catch up on the full Camp Mystic series

👉 Essay #1: What Happened at Camp Mystic?

👉 Essay #2: The Water’s Rising

👉 Essay #3: Flash Flood Alley

Follow *The Balance Sheet* for more essays on U.S. public policy, flood risk, and the economics of resilience.

💬 Share your thoughts in the comments.

“ Clap if you learned something new.

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Colophon

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